

26STCV08092 26STCV08092

County: los-angeles

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Case Number: 26STCV08092 Hearing Date: September 10, 2026 Dept: 407

Tentative

Ruling

Judge

Brock T. Hammond, Department 407

HEARING DATE: September 10, 2026 TRIAL DATE: Vacated

CASE: Nikolas Econn v. 667 DS Services of America,
Inc., et al.

CASE NO.: 26STCV08092

DEFENDANT PRIMO BRANDS CORPORATION'S DEMURRER TO

PLAINTIFF'S FIRST AMENDED COMPLAINT

MOVING PARTY: Defendant

Primo Brands Corporation

RESPONDING

PARTY: Plaintiff Nikolas Econn

Plaintiff,

Nikolas Econn, was placing a 5-gallon glass water bottle down when the bottle suddenly shattered. Plaintiff suffered lacerations. Plaintiff now brings this action against the manufacturers, sellers, and suppliers of the glass bottle.

I. INTRODUCTION

On February 13, 2026, Plaintiff commenced this action.

On May 6, 2026, Plaintiff filed the First Amended Complaint (“FAC”) against Defendants, DS Services of America, Inc. and Primo Brands Corporation (“Primo”), asserting causes of action for, general negligence, products liability, breach of the implied warranty of merchantability, and breach of the implied warranty of fitness for a particular purpose.

On July 9, 2026, Primo filed this demurrer to the third and fourth causes of action.

On August 27, 2026, Plaintiff filed an opposition.

On September 3, 2026, Primo filed a reply.

II. LEGAL STANDARD

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context, accepting the alleged facts as true. (Nolte v. Cedars-Sinai Medical Center (2015) 236 Cal.App.4th 1401, 1406.) “Because a demurrer challenges defects on the face of the complaint, it can only refer to matters outside the pleading that are subject to judicial notice.” (Arce ex rel. Arce v. Kaiser Found. Health Plan, Inc. (2010) 181 Cal.App.4th 471, 556.)

III. DISCUSSION

Primo demurs to the third cause of action for breach of the implied warranty of merchantability and fourth cause of action for breach of the implied warranty of fitness for a particular purpose because the FAC does not sufficiently allege privity between the parties. The court disagrees.

Typically, “[v]ertical privity is a prerequisite in California for recovery on a theory of breach of the implied warranties of fitness and merchantability.” (United States Roofing, Inc. v. Credit Alliance Corp. (1991) 228 Cal.App.3d 1431, 1441, internal citations omitted.) However, “while privity is a prerequisite to maintaining an action for breach of warranty, there is an exception to the privity requirement in cases involving foodstuffs which hold that an implied warranty of fitness for human consumption runs from the manufacturer to the ultimate consumer, regardless of privity of contract” (Vassallo v. Sabatte Land Co. (1963) 212 Cal.App.2d 11, 17.) “[I]n cases involving personal injuries resulting from defective products, the theory of strict liability in tort has virtually superseded the concept of implied warranties.” (Grinnell v. Charles Pfizer & Co. (1969) 274 Cal.App.2d 424, 432.)

Vassallo is instructive. In Vassallo, the plaintiff was injured when a defective glass milk bottle was delivered to her home and shattered in her hand. The plaintiff suffered permanent injuries to her hand. (Id. at pp. 13-14.) The court expressly rejected the dairy company’s argument that the plaintiff could not recover for lack of privity and held that the implied warranty extended to her under the personal injury exception. (Vassallo, supra, 212 Cal.App.2d at p. 17.)

Here, Plaintiff alleges that the bottle at issue contained drinking water and that he was “using one of the 5-gallon glass water bottles in an ordinary, intended, and reasonably foreseeable manner.” (FAC, ¶¶ 7, 11.) As alleged, this case is on all fours with Vassallo. A glass bottle containing a consumable liquid shattered from ordinary use and caused injury to a person who had no contractual privity with the manufacturer of the bottle. The third and fourth causes of action do not fail for lack of privity.

IV. CONCLUSION

Based on the foregoing, the demurrer is OVERRULED.¿

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Defendant is ordered to serve and file its Answer to the
FAC within 10 days of this order.

Defendant to give notice, unless waived.

Dated: September 10, 2026

Brock T. Hammond

Judge of the
Superior Court